



Appeal Decision

Site visit made on 16 July 2026

by L Reid BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 24 August 2026

Appeal Ref: 6005461

Chelmer House, Braintree Road, Great Dunmow, Essex CM6 1HT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mrs Jane Sawyer against the decision of Uttlesford District Council.
 - The application Ref is UTT/25/2680/FUL.
 - The development is change of use from residential dwelling to part residential and part business use (wellbeing business).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The description of development has been taken from the decision notice as it is more succinct than that on the planning application form. The application is retrospective in nature. However, the appeal is determined based on the information submitted with the application.
3. Since the appeal was made, the Government published a revised National Planning Policy Framework (the Framework). Any policies that are material to this decision have not fundamentally changed in the Framework. As a result, I consider that there is no requirement for me to seek further submissions on the revised Framework, and I am satisfied that no party's interests have been prejudiced by my approach.
4. Appeal decisions must be made on the basis of the currently-adopted development plan. Since the application was determined, the Uttlesford Local Plan 2021 – 2041 March 2026 (the Local Plan) has been adopted and supersedes the Uttlesford Local Plan January 2005. The Council has provided the relevant policies, and both main parties have had the opportunity to comment on the implications for this appeal. I am therefore satisfied that my consideration of the appeal against the policies in the new Local Plan has prejudiced no party.
5. The appellant has submitted additional evidence with the appeal which includes a letter from the owner, a letter of support from a nearby resident and a parking management plan. Changes are also proposed to the class schedule. This new evidence does not result in a substantial or fundamental change to result in a different application. The Council has also had the opportunity to comment. Given its nature, the acceptance of this new evidence would not deprive those who should have been consulted of the opportunity of such consultation. I have therefore considered it in determining this appeal.

Main Issues

6. The main issues are:

- Whether adequate on-site parking provision and safe access arrangements have been demonstrated;
- The effect of the development on the living conditions of neighbouring occupiers with regards to noise and disturbance; and,
- The effect of the development on the residential character of the area.

Reasons

Parking provision and access

7. The proposal involves the use of two of the rooms within the dwelling as a wellbeing business, with the remainder of the property retained in residential use. The wellbeing business provides Pilates and yoga classes.
8. The appeal site is a large property. It has a front driveway, and there is vehicular access to the side that leads to two garages and other properties that are also within the appellant's ownership. The parking management plan submitted with the appeal depicts parking for eight vehicles within the appeal site. However, it does not include dimensions, and the parking layout is not shown to scale. It is therefore not possible to establish whether the appeal site can realistically accommodate the number of vehicles illustrated.
9. The Parking Management Plan depicts one vehicle overhanging the driveway and encroaching onto the pavement which is not acceptable. Additional vehicles are also shown in tandem parking arrangements along the side access. As no vehicle tracking details are provided, this arrangement raises concerns that it could potentially obstruct the access, particularly as it has not been shown that sufficient manoeuvring and circulation space is available, or that vehicles would not be required to undertake multiple manoeuvres within the access. It has therefore not been demonstrated that vehicles can safely enter, manoeuvre within, and exit the site.
10. The Highway Authority also raises similar concerns regarding the parking arrangements. The adequacy of the parking, manoeuvring and circulation arrangements is fundamental to the acceptability of the development. There must also be a reasonable degree of certainty that any planning conditions could be satisfactorily discharged. These matters can therefore not be resolved by planning conditions. Even if some attendees use nearby public car parks, as these are not under the control of the appellant, their availability cannot be secured. It is acknowledged that some attendees may walk, but it cannot be assumed that this would always be the case. These factors do therefore not overcome the concerns identified in relation to the parking layout.
11. A 15-minute gap is scheduled between classes, but this does not in itself guarantee that parking demand is limited to a single group of attendees at any one time. Attendees may arrive before the start of a class, particularly if parking spaces are more limited, leading to an overlap between classes. Consequently, there is potential for vehicles associated with departing and arriving attendees to be present on the site at the same time, which could result in a greater number of

vehicles being parked at, or seeking to access the site at the same time, despite a maximum of four attendees per session.

12. There are no details regarding the allocation of spaces between the wellbeing use and the residential use. Some classes take place in the evening, when people may be home. In the absence of adequate parking provision, this could increase pressure on the parking arrangements, resulting in vehicles obstructing one another within the site or consequent illegal or unsafe parking, which would be harmful to highway safety.
13. The appellant operates a no grass-verge parking policy, which is communicated to attendees at the time of booking and through written guidance. Whilst this is a positive measure, its effectiveness is dependent upon the behaviour and compliance of attendees. Furthermore, evidence before me from third party representations to the planning application suggests parking is taking place outside of the appeal site. Limited information has also been provided regarding how compliance is actively monitored, enforced and addressed, should breaches occur. As a result, only limited weight can be afforded to these measures.
14. Drawing all of the above together, I therefore conclude that adequate on-site parking arrangements and safe access have not been demonstrated. The proposal therefore conflicts with Core Policies 26, 27 and 31 of the Local Plan. These policies amongst other things, require development to reduce road danger and comply with the latest guidance on parking provision. The District Wide Design Code 2024 requires well-considered parking. The proposal would not achieve this. It would also fail to accord with Policy TR4: 1.e of the Framework which states that proposals should provide a suitable number of parking spaces.

Living conditions of neighbouring occupiers

15. The appeal site is located between 7 Braintree Road and Clare House, which are the nearest neighbouring occupiers. The class schedule has been revised so that no classes would commence before 08:15. Nevertheless, attendees would be expected to arrive shortly beforehand, meaning that activity associated with the use could occur before the advertised start time. Whilst some neighbouring occupiers may already be awake, this does not necessarily mean that additional activity would be imperceptible or without effect on their living conditions.
16. Classes are limited to a maximum of four attendees, and there is no substantive evidence before me to indicate otherwise. Although classes take place six days of the week, they would not run continuously throughout the day, with sessions confined to morning and evening periods. The frequency of classes would also vary throughout the week. Having regard to the class schedule and the number of attendees, the overall level of activity generated would be moderate rather than limited.
17. Even if noise generated within the studios is limited, the use would give rise to noise associated with arrivals and departures, including vehicle movements, car doors closing, conversations between attendees, and access to the building. Whilst the appellant contends that there is no evidence of such disturbance, the absence of complaints does not necessarily mean that the activity is without effect. Although these sources of noise are commonly experienced within a residential area, the proposal would result in them occurring on a regular and recurring basis through the turnover of attendees between successive classes. This would create

a pattern of activity that differs materially from the comings and goings typically associated with a dwelling. Consequently, the cumulative effect of these repeated comings and goings would be more noticeable, particularly during the morning and evening periods when neighbouring occupiers may reasonably expect a quieter environment.

18. I have considered whether the harm arising from the proposal could be mitigated through the imposition of planning conditions. However, this would require a suite of restrictive controls, including limitations on class numbers, operating hours and removal of permitted development rights. Neither party has suggested such conditions or provided evidence as to how they would operate in practice. In the absence of that information, I cannot be certain that suitably worded conditions, in relation to their enforceability and reasonableness, could be imposed that would effectively overcome the harm I have identified whilst still allowing the wellbeing business to operate as intended.
19. I have also given careful consideration to whether the impacts of the proposal could be mitigated by granting a temporary planning permission. However, the appellant has not identified a clear end date. Furthermore, the application is retrospective, and the use has been in operation since May 2025. Consequently, a period of the effects of the development on neighbouring occupiers has already occurred. I have had regard to the letter of support received from the neighbouring property and that this suggests that the use has been operating without causing noise. I am however mindful that one person's perception of what constitutes unreasonable noise and disturbance is different from another, and that surrounding occupiers may change over time.
20. For these reasons, I conclude that it has not been demonstrated that the proposal would not cause harm to the living conditions of neighbouring occupiers with regard to noise and disturbance. Accordingly, the proposal conflicts with Policy 44 of the Local Plan, which amongst other things, requires it to be demonstrated that nearby noise sensitive uses will not be exposed to noise impacts that adversely affect the amenity of existing and future users. It also conflicts with Policy P3: 2.d of the Framework which states that development proposals should mitigate and reduce to a minimum potential adverse impacts resulting from noise.

Residential character

21. The appeal site is situated within a predominantly residential area. During my late-morning site visit, I observed a steady flow of traffic along the road and associated traffic noise was audible. Whilst I recognise that this is likely to vary throughout the day, the area cannot be characterised as one of complete tranquillity.
22. The proposal introduces a commercial element within this residential setting. However, a large part of the appeal building is used for residential purposes. Although the use would generate a greater level of activity than would typically be associated with a dwelling, the appeal building remains largely unchanged in appearance and retains its domestic character, with no obvious external indication that it is operating in part as commercial premises.
23. Whilst I have identified harm to the living conditions of neighbouring occupiers arising from the frequency and regularity of comings and goings associated with the wellbeing use, it would be experienced most by those properties closest to the appeal site and would not extend so widely to affect the area as a whole. The

effects are therefore localised. As previously explained, the overall activity from the wellbeing use is moderate. The intensity is therefore not to the extent that it attracts such numbers of attendees and vehicle activity that erodes the residential character or alters the overall function of the area.

24. For these reasons, I therefore conclude that the proposal does not cause harm to the residential character of the area. Accordingly, the proposal does not conflict with Policy 52 of the Local Plan, which amongst other things, requires proposals to have regard to context and identity.

Planning Balance

25. Policy E2: 1.a of the Framework states that to support business growth, substantial weight should be given to the economic benefits for commercial development which allow businesses to invest, expand and/or adapt. There is limited information to assess the proposal's economic benefits.
26. In line with Policy HC4 of the Framework, substantial weight should be given to the benefits where development proposals would make a demonstrable contribution towards promoting good health, reducing health inequalities or supporting social interaction in the local community. Whilst the planning application form states that the intention is to build a business that benefits the local community, no further details have been provided. There is also very little evidence to demonstrate that there is a need for this type of development.
27. Whilst the proposal may provide some social and economic benefits, in the absence of more detailed evidence, they can only be afforded limited weight and therefore do not outweigh the harm identified or the conflict with the development plan.

Conclusion

28. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

L Reid

INSPECTOR